IN THE COURT OF THE CIVIL JUDGE (SENIOR DIVISION), NAGPUR
SPECIAL CIVIL SUIT NO. 342 OF 2023

Shri Prakash Ramrao Joshi,
S/o Late Shri Ramrao Joshi, aged about 58 years,
Occupation: Business, R/o 14, Dharampeth, Nagpur - 440010
... Plaintiff

Versus

Shri Sandeep Ashok Kulkarni,
S/o Shri Ashok Ramchandra Kulkarni, aged about 41 years,
R/o Flat 704, Shivneri Apartments, Kothrud, Pune - 411038
... Defendant

PLAINT
Suit for recovery of money and permanent injunction

The Plaintiff most respectfully submits as under:

1. That the Plaintiff and the Defendant entered into a partnership under a Partnership Deed dated 12/04/2019 for the business of trading in construction material at Nagpur.

2. That the Plaintiff contributed capital of Rs. 25,00,000/- (Rupees Twenty Five Lakh only) whereas the Defendant contributed Rs. 10,00,000/- (Rupees Ten Lakh only).

3. That the Defendant, in breach of the said deed, withdrew a sum of Rs. 18,50,000/- from the firm's account bearing A/c No. 30219876540 with Bank of Maharashtra, Dharampeth Branch, IFSC MAHB0000123, without the consent of the Plaintiff.

4. That the cause of action arose on 08/11/2022 when the Plaintiff discovered the said unauthorised withdrawals on receipt of the bank statement, and continues from day to day.

5. That the suit is within the period of limitation prescribed by Article 113 of the Limitation Act, 1963.

6. That the Plaintiff and the Defendant reside and the cause of action has arisen within the local limits of the jurisdiction of this Hon'ble Court, which is competent to try the suit.

7. Valuation of the suit for the purpose of court fee and jurisdiction is Rs. 18,50,000/- and court fee of Rs. 1,85,000/- has been paid.

PRAYER

It is therefore most humbly prayed that this Hon'ble Court may be pleased to:

(a) decree the suit for a sum of Rs. 18,50,000/- with interest at 12% per annum from 08/11/2022 till realisation;

(b) grant a permanent injunction restraining the Defendant from operating the firm's bank account;

(c) award costs of the suit; and
(d) grant such other relief as the nature of the case may require.

Nagpur Advocate for the Plaintiff
Dated: 20/03/2023 Shri Vinod Kumar Bhagat
Enrolment No. MAH/1122/2005

VERIFICATION

I, Prakash Ramrao Joshi, the Plaintiff above named, do hereby verify that the contents of paragraphs 1 to 7 are true to my own knowledge.
Verified at Nagpur on this 20th day of March, 2023.